



INDEPENDENT CONTRACTOR AGREEMENT

This Independent Contractor Agreement ("Agreement") is entered into this _____ day of _____, 20_____, by and between _____ ("The Company"), with its principal offices located at _____, and the following Independent Contractor (the "Contractor"):

Name: _____

Street Address: _____

City, State, Zip: _____

Telephone Number(s): _____

Social Security Number: _____

In consideration of the promises and covenants contained in this document, the Company and the Contractor agree as follows:

I. The Responsibilities and Relationship of the Parties

- (a) The relationship between the Company and the Contractor is one of customer to Independent Contractor, not one of employer/employee.
- (b) The Contractor agrees to perform the delivery services contemplated by this Agreement to the full satisfaction of the Company.
- (c) In performing these tasks, the Contractor agrees to act at all times as an Independent Contractor and not as an employee, agent, or representative of the Company.
- (d) While the company retains the right to control the results to be accomplished, the Contractor retains the right to control the manner or means by which the tasks described in this Agreement are to be performed.
- (e) The Contractor may engage in any outside business activity or Venture in any manner it desires, including, but not limited to providing the same or different services on behalf of other companies including competitors of the Company and making its services generally available to the public. By way of example, and not limitation, the Contractor is free to:
 - (1) Solicit business from any business entity it wishes;
 - (2) Hire, direct and pay assistants;
 - (3) Maintain a business office;
 - (4) Own such equipment and materials as are necessary to conduct its business;
 - (5) Hold a business or trade license; and
 - (6) Advertise its services in newspaper, trade journals, magazines, etc.

INDEPENDENT DRIVER INFORMATION

Date:

Name (Last / First / Middle):

Company Name:

Company Address (Street / City / State / Zip):

Home Address (Street / City / State / Zip):

Business Phone #:

Home Phone #:

Contractor's Listing of Customers (Name and Address)

Please list the days and hours you expect to be available during the next three months.*

Monday	Tuesday	Wednesday	Thursday	Friday	Saturday	Sunday

*It is understood that this is not a schedule but merely an approximation of your availability. As an independent contractor, you have the right to accept or decline delivery assignments in your sole discretion.

*May we contact you to perform occasional emergency deliveries at other times?

YES ■

NO ■

INDEPENDENT CONTRACTOR DELIVERY TERMS

I hereby certify that during the three month period following the date of this update, I will charge Marsala's Pizza Inc. customers the amount of \$ _____ (not to exceed \$3.00) for my delivery service.

Date: _____ Independent Contractor: _____

Name: _____

Date: _____

Independent Contractor Hour Availability

The following hours are the hours you recently submitted to Marsala's Pizza Inc. as:

Monday	Tuesday	Wednesday	Thursday	Friday	Saturday	Sunday

Marsala's Pizza Inc. expects you as an independent contractor to fulfill your terms of this agreement and deliver on the days and hours you requested.

However Marsala's Pizza Inc. realizes that certain circumstances may arise and you might have to change your hours or days. All changes must be submitted in writing and agreed to by a representative from Marsala's Pizza Inc.

Also, If you are unable to come in to work for any reason, you might call at least 2 hours before your scheduled time to work.

Failure to comply with this Agreement may result in termination of your contract.



AGREEMENT TO USE ALTERNATIVE DISPUTE RESOLUTION PROCEDURES

The employee agrees that all issues or disputes ("issues") pertaining to his or her employment with Marsala's Pizza Inc. DBA Zazzo's Pizzeria, and Westmont Marsala's Pizza Inc DBA Zazzo's, will in all instances initially be submitted in writing to Dominc Barraco, personnel, manager, or his representative for informal attempts to resolve the issue. Such written submission shall identify the nature of the issue, the specifics of the issue such as the date(s) and time(s) it occurred, the person(s) involved, a description of what occurred, and such other details as would enable Marsala's Pizza Inc. DBA Zazzo's Pizzeria, and Westmont Marsala's Pizza Inc DBA Zazzo's Pizzeria to conduct an inquiry into the issue that would be reasonably likely to obtain an understanding of all relevant facts. The employee's written statement of the issue should also include a description of any request, proposal, or suggestion that the employee may have for resolving the issue, including any proposal or suggestion for avoiding a recurrence of the issue.

Marsala's Pizza Inc. DBA Zazzo's Pizzeria, and Westmont Marsala's Pizza Inc DBA Zazzo's Pizzeria shall have up to thirty (30) days in which to conduct an investigation and meet with the employee to informally seek to resolve the issue. Should the issue not be resolved within an additional two week period of Marsala's Pizza Inc. DBA Zazzo's Pizzeria, and Westmont Marsala's Pizza Inc DBA Zazzo's Pizzeria response to the issue (or within such additional time as the parties may agree to extend the time to reach resolution) the parties agree to submit the issue/dispute to binding arbitration to be conducted in Chicago, Illinois in accordance with the expedited arbitration rules then in existence under the provisions of the American Arbitration Association rules and procedures governing employment disputes, as governed by application of the laws of the State of Illinois, and such Federal laws as are implicated, as interpreted by the federal courts of the Northern District of Illinois in the event of conflict between the federal courts. The decision of the arbitrator shall be binding and enforceable by resort to the courts, if necessary, and shall be in lieu of, and not in existence or in future enacted law that purports to govern the employer/employee relationship. The arbitrator's authority shall include the authority to award costs and fees to the prevailing party, and such personal remedies as may be available to the employee had the employee resorted to traditional avenues of seeking redress.

The parties agree that the foregoing efforts to use resolve disputes and issues pertaining to employment related matters are governed, to the extent permitted, by the provisions of the Federal Arbitration Act and any State arbitration provisions that may apply should federal law not apply, and that the procedures and provisions detailed herein are to be the exclusive manner in which any claims, actions, causes of action or liabilities arising under the Title VII of the Civil Rights Act of 1964, as amended; the Age Discrimination in Employment Act, as amended; the Employee Retirement Income Security Act, as amended; the Illinois Human Rights Act; the Fair Labor Standards Act and/or any other federal, state, or municipal employment discrimination statutes (including, but not limited to, claims based on age, sex, sexual orientation, attainment of benefit plan rights, race, religion, national origin, handicap, retaliation, marital status, veteran status, pay amounts, overtime pay or other employee compensation), and/or claims, actions, causes of action or liabilities and/or any other federal, state, or local statute, law ordinance or regulation; and/or any other claim whatsoever including, but not limited to, claims based upon breach of contract, wrongful termination, defamation, intentional infliction of emotional distress, negligence and/or any other common law, statutory or other claim whatsoever arising out of or relating.

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To Employee's employment with and/or separation from employment with Company, but excluding any claims which Employee may make under state workers' compensation or unemployment compensation laws and/or any claims which by law Employee cannot waive and/or claims related to a breach of the Agreement.

The parties further agree that the foregoing dispute resolution agreement shall not and does not alter or amended the employment at will relationship that exists in Illinois, or that the foregoing procedures result in contractual rights between the parties other than as to the rights and obligations actually stated above.

Date:

Signature:

Name:

Address:

Phone Number:
